

Ross on Crime

A

Arrest

Last Review: 23/09/2023

Arrest

Definition	[1.6000]
Legislation	[1.6005]
Limitation on powers	[1.6010]
Reasonableness	[1.6015]
Reason must be given	[1.6020]
Power to enter private premises	[1.6025]
Arbitrary arrest is a hallmark of tyranny	[1.6030]
Arrest under interstate warrant	[1.6035]
Use of force by police	[1.6040]
Helping police with their enquiries	[1.6045]
Citizen's arrest for breach of the peace	[1.6050]

[1.6000] Definition

In *R v Lavery* (1978) 19 SASR 515 King CJ ruled (at 516–517):

A suspect may, voluntarily and without constraint, accede to a police officer's request to accompany him and, if he does so, there is of course no interference with his liberty. This is so even if he goes reluctantly out of respect for authority or fear that a refusal will be construed as an indication of guilt or some other similar motive. The suspect's liberty is

not under restraint simply because the police officer would or might arrest him if he were to exercise his right to depart or to refuse to accompany the police officer. If, however, the circumstances are such as to convey, notwithstanding the use of words of invitation or request, that the suspect has no real choice, his freedom is under restraint and he cannot be regarded as accompanying the police officer voluntarily. If such a situation comes into existence, and the police officer does not wish to make an arrest, it is incumbent upon him to make it clear by words or actions that the suspect is free to refuse the invitation and is free to depart.

Approved:

Van Der Meer v The Queen (1988) 62 ALJR 656; 82 ALR 10; 35 A Crim R 232 per Deane J (at 670; 34; 255);

Norton v The Queen (2001) 24 WAR 488; 122 A Crim R 104 (CCA) at [101];

R v C (1997) 93 A Crim R 81 at 96 (NSW CCA) (Hunt CJ at CL).

In *R v O'Donoghue* (1988) 34 A Crim R 397 (NSW CCA) Hunt J said (at 401):

An arrest occurs whenever it is made plain by what is said and done by the police officer that the suspect is no longer a free person. Words may be sufficient: *Alderson v Booth* [1969] 2 QB 216 at 220-221; 53 Cr App R 301 at 303-304; but they are not always necessary — what must be done is what is reasonable in the circumstances: *Tims v John Lewis & Co Ltd* [1951] 2 KB 459 at 466; *Wheatley v Lodge* [1971] 1 WLR 29 at 36; [1971] 1 All ER 173 at 178.

[1.6005] Legislation

Cth: *Crimes Act 1914* ss 3W–3ZD;

Qld: *Criminal Code* ss 546–552;

WA: *Criminal Investigation Act 2006* ss 127–128;

Tas: *Criminal Code* ss 301–303;

NT: *Police Administration Act* ss 121–127;

NSW: *Law Enforcement Powers and Responsibilities Act 2002* Pt 8;

Vic: *Crimes Act 1958* ss 457–463B; *Charter of Human Rights and Responsibilities Act 2006* s 21;

SA: *Criminal Law Consolidation Act 1935* s 271;

ACT: *Crimes Act 1900* s 211 ff; *Human Rights Act 2004* s 18;

NZ: *Crimes Act 1961* ss 30–38 and 315 ff.

[1.6010] Limitation on powers

In *R v Grimley* (1994) 121 FLR 236 (NT, Kearney J) his Honour said (at 253):

It is a basic obligation of a police officer to be fully aware of the limitations on his power to arrest, since the citizen's right to personal liberty under the law is “the most elementary and important of all common law rights”: see *Trobridge v Hardy* (1955) 94 CLR 147 at 152 per Fullagar J.

[1.6015] Reasonableness

Offence being committed

In *Perkins v County Court (Vic)* (2000) 2 VR 246; 115 A Crim R 528 (CA) Buchanan JA said (at 268; 550–551 [49]):

Sections 458(1)(a)(I) and 462 of the *Crimes Act 1958* ... provide that any person may arrest another person found committing an offence or so behaving that the first person believes on reasonable grounds that the other person is guilty of an offence, where the first person believes on reasonable grounds that the arrest of the other person is necessary to ensure the appearance of the offender before a court of competent jurisdiction or to preserve public order or to prevent the continuation or repetition of the offence or the commission of a further offence or for the safety or welfare of members of the public or of the offender.

Offence believed to have been committed

In *Kelly v Dann* (1992) 8 WAR 225 Ipp J held:

- (1) a police officer is only entitled to arrest if he has “reason to suspect” under the *Police Act 1892* (WA), s 49, or if he has “just cause to suspect” the person of having something stolen or unlawfully obtained under s 43(1);
- (2) it was insufficient merely for a police officer to entertain a suspicion and for him to genuinely believe it was reasonable. The test was an objective one and went to whether, on the facts upon which a suspicion was formed, it was reasonable;

- (3) reasonableness of the suspicion could not be determined by reference to facts not taken into account by the police officer at the time the suspicion was held.

[1.6020] Reason must be given

The person arrested must be informed of the reason for the arrest. Failure to do so will render the arrest unlawful:

Christie v Leachinsky [1947] AC 573; [1947] 1 All ER 567;

R v Stafford (1976) 13 SASR 392 (Bray CJ) at 399–400;

R v O'Neill (1988) 48 SASR 51 (King CJ) at 57;

Hortin v Rowbottom (1993) 61 SASR 313; 68 A Crim R 381 (Mullighan J);

Michaels v The Queen (1995) 184 CLR 117; 130 ALR 581; 80 A Crim R 542 per Gaudron J (at 129–130; 589; 550).

[1.6025] Power to enter private premises

Arrest

In *Halliday v Nevill* (1984) 155 CLR 1; 13 A Crim R 250; 57 ALR 331 Brennan J said (at 11–12; 337; 255–256):

The common law power to arrest on a criminal charge can be exercised as of right on private as well as on public property, in the home of a fugitive offender or in the homes of his friends. No leave or licence is necessary to enter if no force be needed, and in some cases force may be used.

Although the common law has long protected the privacy of the home, it has never treated that privacy as inviolate against the exercise of a power to arrest. ...

Where entry is sought to effect an arrest for a criminal offence, it is a case “when the King is party”. The person effecting the arrest is entitled not only to enter as of right but to break down the outer doors of the offender's home after making the customary demand: “Open in the name of the King” (per Lord Denning MR in *Southam v Smout* [1964] 1 QB 308 at 320) ...

... At common law, a constable is entitled to enter on private property to effect an arrest within the limits of his common law power to arrest without warrant, although he would be a trespasser if he entered or remained on the property for any other purpose.

In *Lippl v Haines* (1989) 18 NSWLR 620; 47 A Crim R 148 (CCA) Hope AJA with whom the others agreed said (at 635; 162):

[A] constable or other person exercising a power of arrest under s 352 has the same powers of entry as he would have had if he were exercising a common law power to arrest. It matters little for this purpose whether the powers are imported by necessary implication into the terms of the statute, or whether the common law power is treated as applying to the statutory power to arrest. In either case the person effecting the arrest has the same powers of entry as those given by the common law, but in my opinion has no greater powers.

There is no common law power to enter a house forcibly in order to see whether an alleged offender were there: *Lippl v Haines* (1989) 18 NSWLR 620; 47 A Crim R 148 (at 631; 158).

And in *Police v Dafov* (2007) 102 SASR 1; 179 A Crim R 420 (David J) police had entered Mr Dafov's property to arrest him for earlier driving offences. The magistrate had found no case to answer. His Honour held that the *Road Traffic Act 1961* (SA) did not entitle police to enter property without consent. Prosecution appeal dismissed. The magistrate was correct.

Breach of the peace

In *Nicholson v Avon* [1991] 1 VR 212 Marks J said (at 222):

Police officers may enter upon private premises in the performance of their duty to prevent a breach of the peace.

Further (at 223):

The common law duties and powers of police to prevent breaches of the peace are not necessarily touched by the relevant provisions of the *Crimes Act 1958*. These provisions might certainly be said to have abolished all common law powers of arrest. Arrest however is one thing; prevention of a breach or threatened breach of the peace is another. Once it is found that the police were lawfully on the private premises of the plaintiff, they had the powers of arrest conferred by s 458.

[1.6030] Arbitrary arrest is a hallmark of tyranny

In *Donaldson v Broomby* (1982) 60 FLR 124; 40 ALR 525; 5 A Crim R 160 (FCA), Deane J began his judgment with the following words (at 126; 525–526; 161):

Arrest is the deprivation of freedom. The ultimate instrument of arrest is force. The customary companions of arrest are ignominy and fear. A police power of arbitrary arrest is a negation of any true right to personal liberty. A police practice of arbitrary arrest is a hallmark of tyranny.

[1.6035] Arrest under interstate warrant

Under the *Service and Execution of Process Act 1992* a person named in a warrant of a State may be apprehended in another State (s 82(1)).

For such an interstate arrest, the *Service and Execution of Process Act 1992* is a code.

In *R v Forrest* (1988) 35 A Crim R 421 (SA CCA) King CJ said (at 424):

The provisions of the Act constitute a code, in my opinion, for the apprehension and management of such persons and leave no room for the intervention of State law.

Followed:

R v Bondareff (1999) 74 SASR 353; 109 A Crim R 23 (CCA) per Mullighan J at [68].

[1.6040] Use of force by police

Police can use such force as is reasonably necessary to effect an arrest.

Legislation

Cth: *Crimes Act 1914* s 3ZC;

Qld: Criminal Code s 254;

WA: Criminal Code s 231;

Tas: Criminal Code s 26;

NT: Criminal Code s 27(a);

NSW: *Law Enforcement (Powers and Responsibilities) Act 2002* s 231;

Vic: *Crimes Act 1958* s 462A;

SA: *Criminal Law Consolidation Act 1935* s 271;

ACT: *Crimes Act 1900* s 221;

NZ: *Crimes Act 1961* s 39.

In *R v Turner* [1962] VR 30 (CCA) the civilian accused had suffered thefts from his car. One night he saw an arm come into his car. He called out. The man ran. The accused said “Stop or I’ll shoot”. He fired towards the fugitive who died from the shot. He was acquitted of murder and convicted of manslaughter. On appeal the court quashed the conviction. The court said (at 39):

It is wrong ... to say categorically that the use of a lethal weapon to effect an arrest for a misdemeanour can in no circumstances be justified. In our opinion, it was open to the jury to hold that in the particular circumstances of this case the applicant was justified in firing towards (not at) the person whom he was trying to arrest.

Approved:

R v Hailemariam (1999) 103 A Crim R 426 at 430 [18] (SA, Mullighan J).

See also

Elwin v Robinson [2012] WASC 311

See also

Dan Meagher, “Excessive Force in Making an Arrest: Does it Make the Arrest Ipso Facto Unlawful” (2004) 28 Crim LJ 237–242.

[1.6045] Helping police with their enquiries

In *R v Lemsatef* [1977] 1 WLR 812; [1977] 2 All ER 835; 64 Cr App R 242 (CA) Lawton LJ giving the judgment of the court said (at 816, 839, 245–246):

First, it must be clearly understood that neither customs officers, nor police officers have any right to detain somebody for the purposes of getting them to help with their enquiries. Police officers either arrest for an offence or they do not arrest at all. Customs either detain for an offence or they do not detain at all. The law is clear. Neither arrest nor detention can properly be carried out without the accused person being told the offence for which he is

being arrested. There is no such offence as “helping police with their enquiries”. This is a phrase which has crept into use, largely because of the need for the press to be careful about how they report what has happened when somebody has been arrested but not charged. If the idea is getting around amongst either customs and excise officers or police officers that they can arrest or detain people, as the case may be, for this particular purpose, the sooner they disabuse themselves of that idea the better.

[1.6050] Citizen's arrest for breach of the peace

In *R (Laporte) v Chief Constable of Gloucestershire* [2007] 2 AC 105; [2007] 2 All ER 529 (HL) the court approved *Albert v Lavin*. Lord Bingham said (at 124; 543 [29]):

Every constable, and also every citizen, enjoys the power and is subject to a duty to seek to prevent, by arrest or other action short of arrest, any breach of the peace occurring in his presence, or any breach of the peace which (having occurred) is likely to be renewed, or any breach of the peace which is about to occur.

In *Coleman v Power* (2004) 220 CLR 1; 78 ALJR 1166; 209 ALR 182 Gleeson CJ, citing *Albert Lavin*, said (at 24; 187 [10]):

[A]t common law, in an appropriate case a citizen in whose presence a breach of the peace is about to be committed has a right to use reasonable force to restrain the breach.

In *Albert v Lavin* [1982] AC 546; [1981] 3 All ER 878; (1981) 74 Cr App R 150 Lord Diplock said (at 565; 880; 152) (HL) (at 565; 880; 152):

[E]very citizen in whose presence a breach of the peace is being, or reasonably appears to be about to be, committed has the right to take reasonable steps to make the person who is breaking, or is threatening to break the peace refrain from doing so; and those reasonable steps in appropriate cases will include detaining him against his will. At common law this is not only the right of every citizen, it is also his duty.

See also, *Nilsson v McDonald* (2009) 19 Tas R 173; [2009] TASSC 66; *Reeves v New South Wales* [2010] NSWSC 611.

Other cases

R v Commissioner of Police (Tas); Ex parte North Broken Hill Ltd [1993] 1 Tas R 99; 61 A Crim R 390 (Wright J).

In *Hulley v Hill* (1993) 91 NTR 41; [112 FLR 353](#); [69 A Crim R 52](#) Mildren J made an extensive examination of common law principles.

[Gollan v Nugent](#) (1988) 166 CLR 18 at 32 per Brennan J.

In *DPP v Whiteside and Dieber* [2000] VSC 260, Cummins J imposing sentence said (at [27]):

There is a long history of the power of citizen's arrest: generally, from Norman times and particularly, from the time of Henry II and the Assize of Clarendon (1166). It is an incident of the King's (or Queen's) Peace. See [R v McKay](#) (1957) VR 560 at 571–574 per T W Smith J ... [R v Turner](#) (1962) VR 30 at 36–38 per curiam and *R v Lerke* (1986) 25 DLR (4) 403 at 408–410 per Laycraft CJA delivering the judgment of the Alberta Court of Appeal.

(and in the footnote)

See also [Police v Hailemariam](#) (1999) 73 SASR 319 at 322–323 per Mullighan J; *R v Frugtniet and Frugtniet* [1999] 2 VR 927 at 306–314 per curiam (tangentially); and the ever helpful works of the late Professor Glanville Williams “Arrest for felony at common law” (1954) Crim LR 408 and “Arrest for breach of the peace” (1954) Crim LR 578.

In [DPP v Whiteside](#) (2000) 1 VR 331; [114 A Crim R 234](#) the Court of Appeal increased the sentence imposed by Cummins J but did not treat his Honour's statement on citizen's arrest.

Legislation

Qld: Criminal Code s 260;

WA: *Criminal Investigation Act 2006* s 25;

Tas: Criminal Code s 27(4)–(8);

NT: Criminal Code ss 26(1)(a) and 27(c);

NSW: *Law Enforcement Powers and Responsibilities Act 2002* s 100;

Vic: *Crimes Act 1958* s 458;

SA: *Criminal Law Consolidation Act 1935* s 271;

ACT: [Crimes Act 1900](#) s 218.

In the Northern Territory, a citizen's only power of arrest is for breach of the peace: *Hulley v Hill* (1993) 91 NTR 41; [112 FLR 353](#); [69 A Crim R 52](#) (Mildren J).

As to arrest by store detectives: *Brown v GJ Coles & Co Ltd* (1985) 59 ALR 455; [17 A Crim R 79](#) (FCA).

A person may be injured or killed during the attempt to arrest that person. The following cases consider the defence:

[R v Turner \[1962\] VR 30](#) (CCA);

[R v Koutsouridis](#) (1982) 7 A Crim R 237 (Vic CCA);

[Penn v The Queen](#) (1989) 44 A Crim R 131 (WA CCA).

See also

Breach of the peace at [\[2.3300\]](#)